

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No:

Date Filed:

-----X
MOSES PACHECO, JR.,

Plaintiffs,

Plaintiff designates
BRONX COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where cause of action
arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
DARNELL FORRESTER (Shield # 24294; Tax # 950431);
POLICE OFFICER JOSE GARCIA (Shield # 19880);
POLICE OFFICER JOHN DOE 1 (Shield # 25780);
NYPD LIEUTENANT JOHN DOE and POLICE
OFFICERS JOHN DOE 1-10,The plaintiff resides at:
Bronx County, New YorkDefendants.
-----X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York

April 5, 2014

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

RECEIVED

14 APR 10 AM 10:07
COUNTY CLERK
BRONX COUNTYTHE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.
MOSES PACHECO, JR.,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
DARNELL FORRESTER (Shield # 24294; Tax # 950431);
POLICE OFFICER JOSE GARCIA (Shield # 19880);
POLICE OFFICER JOHN DOE 1 (Shield # 25780);
NYPD LIEUTENANT JOHN DOE and POLICE
OFFICERS JOHN DOE 1-10,

Defendants.

-----X
MOSES PACHECO, JR. (hereinafter "plaintiff"), by his attorney(s), THE LAW
OFFICES OF WALE MOSAKU, P.C., complaining of the defendants, THE CITY OF
NEW YORK, POLICE OFFICER DARNELL FORRESTER (Shield # 24294; Tax #
950431); POLICE OFFICER JOSE GARCIA (Shield # 19880); POLICE OFFICER
JOHN DOE 1 (Shield # 25780); NYPD LIEUTENANT JOHN DOE and POLICE
OFFICERS JOHN DOE 1-10 (collectively referred to as the Defendants), upon
information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, plaintiff was, and he still is, a resident of the City of New York, who at all times material and

relevant to this complaint resided, and still resides, in Bronx County, City and State of New York. Plaintiff is an African American male of full age.

3. At all relevant times, defendants POLICE OFFICER DARNELL FORRESTER (Shield # 24294; Tax # 950431); POLICE OFFICER JOSE GARCIA (Shield # 19880); POLICE OFFICER JOHN DOE 1 (Shield # 25780); NYPD LIEUTENANT JOHN DOE and POLICE OFFICERS JOHN DOE 1-10 (collectively referred to as defendant officer(s)), of the New York City Police Department (hereinafter "NYPD"), upon information and belief, were, and still are, law enforcement officers in the employ of the NYPD.
4. At all times herein, the defendant officers were employed as law enforcement officers of the NYPD, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on June 28, 2013, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant

City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2013PI016947.

8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

10. On or about April 24, 2013, at approximately 11:20 p.m., in front of the plaintiff's resident building described as 2778 Schley Avenue, Bronx, New York 10456 (hereinafter "subject location"), the plaintiff was illegally and unlawfully arrested, and thereafter brutally and viciously brutalized, battered and assaulted by the defendant officers.
11. That following the above-referenced assault, the plaintiff was taken into the PSA 8 precinct building, where the assault and beating continued. Due to injuries the plaintiff sustained as a result of the vicious assault and beating that was inflicted upon him by the defendant officers, he was taken to Jacobi hospital by the defendant officers.
12. At Jacobi Hospital, due to the emotional and physical trauma that was perpetrated upon him by the defendant officers, the plaintiff suffered a mental breakdown, and as such was admitted to the psychiatric ward at Jacobi Hospital.
13. At Jacobi Hospital, the plaintiff was treated for both his physical and mental injuries, and thereafter discharged to the custody of the defendant officers.
14. Subsequently, on April 28, 2013, at approximately 02:00 a.m., the plaintiff was arraigned before a criminal court judge in Bronx County

(Docket # 2013BX024615), where he was charged with the following offences:

- a. "Resisting Arrest" (P.L. 205.30);
- b. "Aggravated Harassment" (P.L. 240.30(2));
- c. "Aggravated Harassment" (P.L. 240.30(1)(a));
- d. "Attempted Assault" (P.L. 110/120.00(1));
- e. "Attempted Criminal Mischief" (P.L. 110/145.00(1)); and
- f. "Harassment" (P.L. 240.26(1)).

Defendant Police Officer Darnell Forrester (Shield # 24294) signed the above-referenced complaint.

15. Upon arraignment, the plaintiff pleaded "not guilty", and was released upon his own recognizance.
16. The criminal action against the plaintiff are currently pending.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

17. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 16 of this complaint as though fully set forth herein.
18. Following the plaintiff's arrest, the defendants searched and/or caused the plaintiff and/or his property to be searched, without any individualized reasonable suspicion that he was concealing weapons or contraband.
19. As a result of the foregoing, the plaintiff and/or his property was/were subjected to an illegal and improper search.
20. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983/NEW YORK STATE LAW

21. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 20 of this complaint as though fully set forth herein.

22. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
23. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
24. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
25. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
26. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION: EXCESSIVE FORCE UNDER 42 U.S.C § 1983

27. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 26 of this complaint as though fully set forth herein.
28. The level of force employed by the defendant officers was objectively unreasonable and in violation of the plaintiff's constitutional rights.
29. As a result of the aforementioned conduct of the defendants, the plaintiff was subjected to excessive force, resulting in serious, severe, and permanent physical injuries.

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

30. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 29 of this complaint as though fully set forth herein.
31. The defendant officers fabricated evidence and/or created false evidence against the plaintiff.
32. The defendant officers forwarded fabricated and false evidence/false information to the prosecutors in the Bronx County District Attorney's office.
33. The defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceeding.
34. The defendant officers misrepresented and falsified evidence to the prosecutors in the Bronx County District Attorney's office.
35. The defendant officers withheld exculpatory evidence from the prosecutors in the Bronx County District Attorney's office.
36. The defendant officers did not make a complete statement of facts to the prosecutors in the Bronx County District Attorney's office.
37. By creating false evidence against the plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, which directly resulted in the plaintiff being deprived of his liberty, the defendant officers violated the plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
38. As a consequence of the defendant officers' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.

39. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
40. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

41. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 40 of this complaint as though fully set forth herein.
42. Each and every individual defendant had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
43. The individual defendants failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
- As a consequence of said defendants' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: ASSAULT AND BATTERY

44. Plaintiff repeats and realleges paragraphs 1 through 43 as if each paragraph is repeated verbatim herein.
45. At the time of the plaintiff's arrest by the defendants, the plaintiff did not challenge nor resist the defendants, nor engage in any threatening behavior towards the defendants.
46. However, as set forth above, the defendants assaulted the plaintiff, battered the plaintiff, and subjected the plaintiff to excessive force and summary punishment.

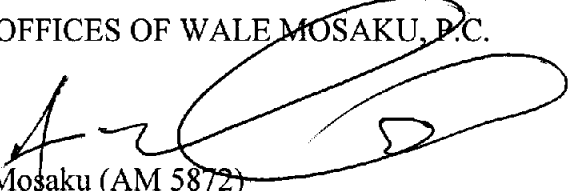
47. The defendants were at all material times acting within the scope of their employment.
48. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendants, individually and severally.
49. The defendants were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendants acts as described above.
50. This action, upon information and belief, falls within one or more of the exceptions of CPLR 1602.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
April 7, 2014

LAW OFFICES OF WALE MOSAKU, P.C.

By:


Wale Mosaku (AM 5872)
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.

MOSES PACHECO, JR.,

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK, POLICE OFFICER
DARNELL FORRESTER (Shield # 24294; Tax # 950431);
POLICE OFFICER JOSE GARCIA (Shield # 19880);
POLICE OFFICER JOHN DOE 1 (Shield # 25780);
NYPD LIEUTENANT JOHN DOE and POLICE
OFFICERS JOHN DOE 1-10,

Defendants.

-----X

I, WALE MOSAKU, an attorney at law, duly admitted to practice in the Courts of this
State of New York, affirm under penalties of perjury that:

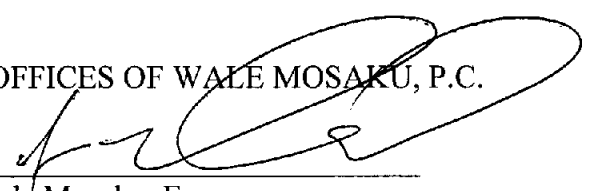
I am the attorney for the plaintiff in the above-entitled matter. That I have read the
foregoing COMPLAINT and know the contents thereof and upon information and belief
deponent believes the matters alleged therein to be true.

The reason this verification is made by deponent and not by plaintiff is that the Plaintiff
herein resides in a County other than the one in which I maintain my office.

The source of deponent's information and grounds of my belief are communications,
papers, reports and investigations contained in the file.

Dated: Brooklyn, New York
April 7, 2014

LAW OFFICES OF WALE MOSAKU, P.C.


BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX Index No.

MOSES PACHECO, JR.,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE OFFICER
DARNELL FORRESTER (Shield # 24294; Tax # 950431);
POLICE OFFICER JOSE GARCIA (Shield # 19880);
POLICE OFFICER JOHN DOE 1 (Shield # 25780);
NYPD LIEUTENANT JOHN DOE and POLICE
OFFICERS JOHN DOE 1-10,

Defendant(s).

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
